LANDLORDHEAVEN
LEGAL DOCUMENTS FOR LANDLORDS

| CASE ID | JURISDICTION | GENERATED |
|---|---|---|
| golden-complete-pack-001 | england | 2 May 2026 |

Stage 2: Section 8 Court & Possession Pack

# Case Summary — Stage 2 Court & Possession

**READY FOR COURT - CLAIM FILE ALIGNED**

**Carry the case into court without breaking the file**

This pack builds a possession claim that can be issued and relied on in court without breaking on inconsistency.

**Case ID:** golden-complete-pack-001 | **Jurisdiction:** england | **Generated:** 2 May 2026

**Most possession cases fail on notice, service, or consistency errors. Keep the file aligned and under review as the case moves forward.**

## Eviction journey

Stage 2 carries the same case from the notice timeline into the court claim and hearing path.

**Serve Notice**
FOUNDATION
Prepare and serve the Section 8 notice correctly

**Notice Expires**
TIMING CHECK
Wait for the notice period to end before action

**Issue Claim**
CURRENT STAGE
Submit possession claim to the court

**Court Hearing**
NEXT
Present your case and evidence to the judge

| PROPERTY | TENANT |
|---|---|
| 16 Willow Mews York YO24 3HX | Ivy Carleton |

| GROUNDS | ARREARS |
|---|---|
| Ground 8 (mandatory), Ground 10 (discretionary) | £3600.00 |

| NOTICE SERVED | NOTICE EXPIRY DATE |
|---|---|
| 2 May 2026 | 30 May 2026 |

| EARLIEST PROCEEDINGS DATE | CLAIMANT |
|---|---|
| 30 May 2026 | Daniel Mercer |

### What this pack does

- Builds a possession claim that can be issued and relied on in court without breaking on inconsistency.
- Carries the served notice, claim forms, service record, and arrears evidence in one continuous case file.
- Reduces the risk of delay, contradiction, or avoidable challenge in court.

### Next step

Prepare and issue the possession claim using the forms and guidance in this pack once the claim is eligible on or after 30 May 2026.

**Court:** York County Court and Family Court

**Rent due:** 1st day of each month

**Arrears at notice date:** £3600.00

GROUND 8 WARNING

**Ground 8 arrears threshold stays live throughout the case**

Ground 8 must usually be satisfied at both the notice stage and the hearing. If payments reduce arrears below the threshold, the mandatory ground may fail and the claim may depend on discretionary grounds.

**Action:** Update the arrears schedule to the latest practicable date and keep the grounds position under review.

## Case Risks & Compliance

OK

**No immediate blocker identified from the structured checks**

The current pack data does not show an immediate blocker from the structured checks, but the file should stay under review as facts change.

**Action:** Keep the notice, service, and evidence file aligned as the case progresses.

## Compliance Snapshot

DEPOSIT COMPLIANCE RECORDED

OK

Deposit protection and prescribed information are recorded with TDS on 15 January 2024.

**Action:** Retain the scheme certificate and prescribed information record with the case file.

GAS SAFETY EVIDENCE RECORDED

OK

Gas safety evidence is recorded on 10 January 2024.

**Action:** Keep the gas safety record with the notice and court file.

### EPC RECORD RECORDED

OK

EPC evidence is recorded.

**Action:** Retain the EPC record with the case file.

### HOW TO RENT RECORD RECORDED

OK

How to Rent service is recorded on 15 January 2024.

**Action:** Keep the service record with the tenancy file.

### NOTICE TIMELINE RECORDED

OK

Notice served on 2 May 2026 with earliest proceedings date 30 May 2026.

**Action:** Keep the service date, expiry date, and proceedings date aligned across the notice, N215, and any court papers.

## Case Context

The claimant seeks possession of 16 Willow Mews York YO24 3HX relying on Ground 8 (Rent arrears), Ground 10 (Any rent arrears).

The tenancy began on 1 January 2024. The contractual rent is £1,200.00 payable monthly on the 1st day of each rental period.

Ground 8 is relied on as the serious rent arrears ground.

At the date of service of the Form 3A notice on 2 May 2026, the arrears stood at £3,600.00.

That figure is presented as exceeding the statutory Ground 8 threshold of £3,600.00 (3 months).

The rent account and arrears schedule show the unpaid or short-paid periods between 1 January 2026 and 31 March 2026, 3 missed payments.

Ground 10 is relied on because rent lawfully due was unpaid when the notice was served and remains part of the claim history.

The arrears balance relied on for Ground 10 is £3,600.00.

The arrears history, service chronology, and any further tenancy concerns should be read together as part of one possession case, while each statutory ground remains separately pleaded.

Form 3A notice served on 2 May 2026, expiring on 30 May 2026, with proceedings not intended before 30 May 2026.

## Procedural Notes

The rent account first shows an unpaid or short-paid period from 1 January 2026. The most recent affected rental period is 1 March 2026. The current arrears total is £3,600.00 across 3 missed or short-paid rental periods.

The Form 3A notice service milestone currently recorded is 2 May 2026. The possession / proceedings date currently recorded in the file is 30 May 2026.

## Defendant Circumstances

The claimant is not aware of any further information about the defendant's circumstances beyond the matters set out in the claim papers and any information the defendant may wish to place before the court.

## Financial Position

The claimant seeks possession and, if the court thinks fit, judgment for rent arrears currently quantified at £3,600.00.

The contractual rent is £1,200.00 payable monthly.

Form 3A notice served on 2 May 2026, expiring on 30 May 2026, with proceedings not intended before 30 May 2026.